

< insert contractor name > **(Contractor)**
< insert Contractor_Address >

By email

Dear < insert contractor name >

Welcome to {org.legal_name} ABN {org.abn}.

Further to our discussions, we look forward to assisting {org.legal_name} in relation to the provision by {org.legal_name} of support and services to NDIS participants (subject to {org.legal_name} obtaining registration as a registered NDIS provider).

Capitalised terms in this letter have the meaning given in the attached Independent Contractor Terms and Conditions (**Terms**).

As agreed, this letter and the attached Terms will govern the performance of any Services by the Contractor to {org.legal_name}.

By signing below or otherwise providing Services, you agree to and are deemed to:

1. be bound by the Terms
2. be bound by the Worker Declarations as circulated with this cover letter; and
3. confirm that you have provided or understood the information referred to in the attached induction checklist (as applicable) and that {org.legal_name} has identified and addressed the applicable induction criteria on the form.

Please let me know by return email if you do not agree to the above terms. If you do not make these declarations, we may not be permitted to continue your engagement with {org.legal_name}.

I look forward to working together

Executed as an agreement

Signed by: < insert contractor name >

(Contractor)

Signed by {org.legal_name}:

{org.primary_contact.name} and {org.signatory.name}
{org.legal_name}

Independent Contractor Terms and Conditions (Terms)

PARTIES

1. {org.legal_name} ABN {org.abn}. of P.O Box 460, Sanctuary Cove QLD 4212 ({org.name})
2. The person specified in the cover letter accompanying these Terms (the **Contractor**).

BACKGROUND

- (A) {org.legal_name} requires the performance of the Services.
- (B) The Contractor has agreed to perform the Services in accordance with the terms of these Terms.

TERMS OF SERVICE

1. The Services

- 1.1 The Contractor agrees to provide the Services in accordance with these Terms.
- 1.2 The Contractor will be required to perform the Services at any agreed location and at any agreed time. The Contractor may be required to perform the Services for an Affiliate.
- 1.3 The Contractor will provide the Services and must not subcontract the Services or otherwise engage any Person to perform the Services, without the written consent of {org.legal_name} (which consent will not be unreasonably withheld).

2. Contractor's Obligations

- 2.1 The Contractor is required to maintain documentation that relates to the Services, and make such documentation available to {org.legal_name} upon request. Such documentation will include:
 - (a) evidence of work performed;
 - (b) documentation provided to, or obtained by the Contractor, in relation to the provision of the Services;
 - (c) documentation produced by the Contractor in the process of providing the Services;
 - (d) any other documentation that {org.legal_name} reasonably requests of the Contractor and that relates to the provision of the Services.
- 2.2 The Contractor will remain liable for any employment entitlements to which they are deemed to have been entitled, including under any law or industrial instrument (however described), in relation to the provision of the Services, and will indemnify {org.legal_name} in accordance with clause 10.1(b). To avoid doubt, this will include, but is not limited to, any entitlement or obligation concerning:
 - (a) remuneration and superannuation payable;

- (b) any accrued leave entitlements;
- (c) any Tax payable;
- (d) any insurance or premium payable (including workers compensation).

2.3 The Contractor may provide services to an entity other than {org.legal_name}, including where they are similar to the Services, provided that:

- (a) the provision of the Services under these Terms, and the Contractor's compliance with these Terms, remains unaffected;
- (b) there exists no conflict of interest between the obligations of the Contractor under these Terms, and the obligations the Contractor assumes in respect of the other entity; and
- (c) where there is a potential for such a conflict of interest, the Contractor will notify {org.legal_name} before entering into any other agreement and will consult with {org.legal_name} fully about the potential conflict of interest.

2.4 When providing NDIS services or supports via telehealth, use video conferencing software which meets the following requirements:

- (a) Technical protocols provide interoperability between platforms and devices (for example, this might include video and audio codecs, advanced encryption standard (AES), or secure real time transport protocols (SRTP) for SIP (session initiation protocols) encryption)
- (b) Strong passwords, two-factor (step) authentication and an audit trail of user's access to client/patient information can be implemented as part of the software
- (c) The transfer of data is secure from end-to-end using appropriate security protocols that comply with Australian Privacy Principle 11 of the *Privacy Act 1998*(Commonwealth) (i.e., transport layer security (TLS), end-to-end encryption or VPN technology)
- (d) The Contractor can regularly update security measures to protect against malware, viruses, intrusions and email threats on computers used for videoconferencing services and to store personal client information.

3. Relationship between the parties

- 3.1 The Contractor and {org.legal_name} in these Terms acknowledge that their relationship is that of an independent contractor and principal, and do not intend to create an employment relationship between them, or any partnership or other legal relationship.
- 3.2 Unless otherwise permitted in writing by {org.legal_name}, the Contractor must not make any contract or agreement on behalf of {org.legal_name} or attempt to bind {org.legal_name} to the performance, variation, release or discharge of any obligation (however arising).
- 3.3 The Contractor is expressly prohibited from representing itself or any other Person, employee or agent of the Contractor, as being an employee or agent of {org.legal_name}, other than in accordance with these Terms in respect of the provision of the Services.

4. **Payment for the Services**

- 4.1 {org.legal_name} will pay to the Contractor the Services Fee set out in **Item 4** of the Schedule.
- 4.2 The Contractor will be required to invoice {org.legal_name} for the Services Fee, in arrears of the Services, and on a monthly basis.
- 4.3 Providing the Contractor has provided {org.legal_name} with a Tax invoice for the Services that accurately records the Services provided, {org.legal_name} will be required to pay the Contractor, in arrears of the provision of the Services, within 14 days from receipt by {org.legal_name} of a Tax invoice from the Contractor.
- 4.4 Unless otherwise notified by {org.legal_name} in writing, the Contractor will be required to address any Tax invoice to {org.legal_name}, to the address set out in **Item 5** of the Schedule.

5. **Expenses**

- 5.1 Within 14 days of receipt of a Tax invoice, and subject to clause 7.2, {org.legal_name} will reimburse the Contractor for any out-of-pocket expenses incurred by the Contractor.
- 5.2 The reimbursement under clause 7.1 will be made to the Contractor, providing:
 - (a) {org.legal_name} has approved the expenditure; and
 - (b) {org.legal_name} has been provided with appropriate documentary evidence detailing the expenditure.
- 5.3 Where the Contractor fails to comply with this clause, it will be required to bear the cost and expense incurred in the performance of the Services and its obligations under these Terms.

6. **GST**

- 6.1 A word or expression given a meaning in the GST Law, that is not otherwise defined in these Terms, has the same meaning in these Terms as in the GST Law.
- 6.2 The Contractor is required to obtain and retain an ABN, and must provide the ABN to {org.legal_name} on request.
- 6.3 The Contractor agrees to inform {org.legal_name} of any change in the ABN, including an amendment or cancellation.
- 6.4 The Contractor warrants that if it is required to be registered for GST either at the Commencement Date, or at any time during the term of these Terms, it will do all such things as may be necessary to become so registered.
- 6.5 Unless otherwise expressly stated, all amounts payable under these Terms are exclusive of GST.
- 6.6 If GST is payable by a supplier on any supply made under these Terms, the recipient must pay to the supplier an amount equal to the GST payable on the supply.
- 6.7 The recipient will pay the amount referred to in clause 8.6 in addition to and at the same time that the consideration for the supply is to be provided under these Terms.
- 6.8 Except as expressly provided by these Terms:

- (a) the supplier must deliver a Tax invoice or an adjustment note to the recipient before the supplier is entitled to payment of an amount under clause 8.6; and
 - (b) the recipient can withhold payment of the amount until the supplier provides a Tax invoice or an adjustment note, as appropriate.
- 6.9 If an adjustment event arises in respect of a taxable supply made by a supplier under these Terms, the amount payable by the recipient under clause 8.6 will be recalculated to reflect the adjustment event and a payment will be made by the recipient to the supplier or by the supplier to the recipient as the case requires.
- 6.10 If one of the parties to these Terms is entitled to be reimbursed for an expense or outgoing incurred in connection with the Agreement, then the amount of the reimbursement will be:
 - (a) the amount of the expense or outgoing less any input tax credits in respect of the expense or outgoing to which the other party is entitled; and
 - (b) if the payment or reimbursement is subject to GST, an amount equal to that GST.

7. Confidentiality

- 7.1 All information obtained or used by the Contractor in the course of providing the Services, is information of {org.legal_name} (or of an Affiliate, as the case may be).
- 7.2 The Contractor acknowledges that during the term of these Terms, it may become acquainted with or have access to Confidential Information which relates to or in any way arises from {org.legal_name} and its operation and business.
- 7.3 The Contractor agrees to maintain the confidence of Confidential Information. The Contractor must not use or disclose any Confidential Information, and must prevent its unauthorised disclosure to or use by any other Person, except:
 - (a) as required to perform the Services;
 - (b) as required by a court or tribunal; or
 - (c) with {org.legal_name}'s prior written consent to the particular use or disclosure on a case by case basis.
- 7.4 The Contractor must promptly notify {org.legal_name} of any suspected or actual unauthorized use or disclosure of the Confidential Information of which they become aware.
- 7.5 The Contractor agrees not to copy, or in any manner reproduce Confidential Information, unless it is done for the benefit of {org.legal_name} or with the written consent of {org.legal_name} (or of an Affiliate, as the case may be).
- 7.6 On the Termination Date, or at the request of {org.legal_name} at any time, the Contractor must return all Confidential Information to {org.legal_name}.
- 7.7 The Contractor agrees to keep confidential the terms of these Terms, and any information regarding the engagement of the Contractor.
- 7.8 The obligations imposed on the Contractor under this clause continue after the Termination Date.

8. Indemnity

- 8.1 During the term of these Terms, and following the Termination Date, the Contractor indemnifies {org.legal_name} from any Claims, loss, expense, damage or costs incurred by {org.legal_name}, sustained directly or indirectly in the course of providing the Services, in respect of:
- (a) any amount of Tax which it may be deemed {org.legal_name} is or was required to withhold from any remuneration paid to the Contractor pursuant to these Terms (including any additional taxation, levy, cost or penalty applied against {org.legal_name} in respect of any alleged failure by {org.legal_name} to withhold an amount of taxation); and
 - (b) any employment entitlements to which the Contractor or any other person is deemed to have been entitled, including under any law or industrial instrument (however described).
- 8.2 The Contractor is also liable for, and must pay or cause to be paid when due and payable, all of {org.legal_name}'s Indemnified Taxes, and indemnifies {org.legal_name} from any liability or loss for the Indemnified Taxes.

9. Insurance

- 9.1 The Contractor agrees to take out and maintain, during the term of these Terms, all public liability insurance (with a minimum coverage of the amount noted in **Item 6** of the Schedule), providing coverage for the Contractor against liability to third parties and/or property of third parties.
- 9.2 At the request of {org.legal_name}, the Contractor must provide proof of currency of any insurance policy required to be held by the Contractor under these Terms.

10. Dispute Resolution

- 10.1 If there is a dispute under these Terms between {org.legal_name} and Contractor, they agree to negotiate in good faith to resolve the dispute.
- 10.2 If {org.legal_name} and Contractor cannot resolve the dispute in accordance with clause 12.1, either {org.legal_name} or Contractor may elect to appoint a mediator, who will attempt to resolve the dispute on a non-binding basis.
- 10.3 If {org.legal_name} and Contractor cannot agree on the appointment of a mediator within 14 days of {org.legal_name}'s or Contractor's election to have the dispute mediated, a mediator shall be imposed by the President of the Law Society of QLD.
- 10.4 {org.legal_name} and Contractor shall equally bear the costs of the mediation. Any legal costs incurred by {org.legal_name} or Contractor in the mediation process shall be borne by that party alone.
- 10.5 To avoid doubt, nothing in this clause affects either:
- (a) {org.legal_name}'s or Contractor's right to terminate these Terms in accordance with its terms; or
 - (b) {org.legal_name}'s or Contractor's right to resolve any dispute under any applicable legislation.

11. Termination

- 11.1 Either {org.legal_name} or Contractor may terminate these Terms at any time (including before the End Date or any New Date) on 1 (one) months' written notice.

{org.legal_name} may elect to pay the Contractor in lieu of part or all of any period of notice, being a pro rata amount of the Services Fee which is equivalent to one month.

11.2 Either {org.legal_name} or the Contractor may summarily terminate these Terms without notice where:

- (a) the other party engages in a serious breach of the terms of these Terms; or
- (b) the Contractor refuses or is unable to perform the Services in the manner contemplated by these Terms.

11.3 Immediately on the Termination Date, or at any time at the request of {org.legal_name} the Contractor must return all property of {org.legal_name}, including any equipment, documentation and Confidential Information.

11.4 The Contractor agrees that it will owe to {org.legal_name} any amounts in respect of the cost of any equipment or property not returned as a debt to {org.legal_name}, due and payable immediately. The Contractor agrees that {org.legal_name} may deduct from any outstanding Service Fee payable to the Contractor, the amount of such equipment or property required to satisfy such debt.

11.5 Clauses 7 to 11 (inclusive) will survive the termination of these Terms (however occurring).

12. **Variation**

12.1 These Terms can only be amended by mutual consent of the parties, in writing.

13. **Governing Law**

13.1 The parties agree that the law governing the terms of these Terms will be QLD.

14. **No Waiver**

14.1 Where any party to these Terms fails to exercise a right under these Terms, or exercises a right or power in part only, it will not in any way amount to a waiver of that party's rights or entitlements under the provisions of these Terms, except where the party elects to do so in writing.

15. **Whole Agreement**

15.1 These Terms are the whole agreement between {org.legal_name} and Contractor concerning the subject matter. It replaces all prior agreements, representations, arrangements or understandings concerning the subject matter.

15.2 If any term of these Terms is or becomes invalid or unenforceable, then it will be severed, and none of the remaining terms or conditions will be affected and will continue in force.

16. **Interpretation**

16.1 In these Terms:

- (a) headings do not affect interpretation unless the context indicates a contrary intention;
- (b) a reference to currency or "\$" is a reference to Australian currency;

- (c) words denoting the singular number include the plural and visa versa and words denoting any gender include all genders;
- (d) references to parties, clauses, schedules, exhibits or annexures are references to parties, clauses, schedules, exhibits and annexures to or of these Terms, and a reference to these Terms includes any schedule, exhibit or annexure to these Terms;
- (e) references to any legislation or to any section of the legislation include any modification or re-enactment of or any legislative provisions substituted for, and all statutory instruments issued under that legislation or provision; and
- (f) the word "includes" in any form is not a word of limitation.

17. Definitions

In these Terms:

- 17.1 **ABN** means an Australian Business Number, as defined in the *A New Tax System (Australian Business Number) Act 1999* (Cth).
- 17.2 **Affiliate** means a related body corporate of {org.legal_name} (within the meaning of section 50 of the *Corporations Act 2001* (Cth)).
- 17.3 **Claims** includes any complaint, action, suit, cause of action, proceedings, arbitration, debt due, accounts, costs and expense (including any legal costs and expenses), claim, demand, verdict or judgment, arising under the provision of any statute, award, industrial instrument, order or determination or otherwise, or arising under common law or in equity, whether or not known at the date of these Terms, or whether occurring after the date of these Terms.
- 17.4 **Commencement Date** means the date set out in **Item 1** of the Schedule.
- 17.5 **Confidential Information** means information of {org.legal_name} or an Affiliate and which:
 - (a) {org.legal_name} or an Affiliate has indicated is confidential;
 - (b) by its very nature, might reasonably be understood to have been disclosed to the Contractor in confidence;
 - (c) would be of commercial value to a competitor;
 - (d) is commercial information about {org.legal_name} or an Affiliate and persons with whom {org.legal_name} or an Affiliate deals;
 - (e) is technical information;
 - (f) relates to {org.legal_name}'s or an Affiliate's affairs, including performance or profitability reports, budgets, margins and marketing strategies;
 - (g) is product and market information;
 - (h) relates to {org.legal_name}'s or an Affiliate's clients and suppliers, including lists of customers and their requirements;
 - (i) is information about a client or any other third party that is disclosed to the Contractor;

- (j) is strategy or planning material, financial information, marketing plans or strategies, or business plans;
- (k) relates to trade secrets, confidential know-how, marketing or development processes used in relation to {org.legal_name}'s or an Affiliate's products or services; or
- (l) is found in {org.legal_name}'s or an Affiliate's training materials, manuals, procedures or policies,

but excluding:

- (m) information available to the public (other than through any breach of the Contractor's obligations); and
- (n) information which the Contractor can prove it lawfully possessed before obtaining it in the course of providing the Services.

- 17.6 **End Date** means the date specified in **Item 2** of the Schedule.
- 17.7 **GST Law** means the *A New Tax System (Goods and Services Tax) Act 1999* (Cth).
- 17.8 **Indemnified Taxes** means all Pay As You Go Withholdings Taxes and other Taxes (including payroll Tax (if applicable)) payable by the Contractor arising out of or in relation to these Terms or any transaction contemplated by these Terms (and any related interest, penalty, fine or expense associated with them).
- 17.9 **Person** includes any individual, corporation, organisation or other type of entity (and includes a representative of any individual, corporation, organisation or other entity).
- 17.10 **Services** means the NDIS services and supports which you are qualified to provide and which are specified in **Item 3** of the Schedule, and any other services that the parties agree to in writing from time to time.
- 17.11 **Services Fee** means the amount specified in **Item 4** of the Schedule.
- 17.12 **Tax** means any tax, levy, impost, charge or duty (whether named as such or not) imposed by or on behalf of an authority (including a Government Agency) and any related interest, penalty, fine or expense.
- 17.13 **Termination Date** means the date of termination of these Terms, however occurring.

Schedule

Item 1 :	Commencement Date	
Item 2 :	End Date	
Item 3 :	Services	The Contractor will perform supports and services for {org.legal_name} to clients (including NDIS participants) of {org.legal_name} in the manner and at the times agreed with or as otherwise directed by {org.legal_name}
Item 4 :	Services Fee	As agreed with {org.legal_name}
Item 5 :	Address for Tax Invoice	As agreed with {org.legal_name}
Item 6 :	Minimum amount of public liability coverage	As agreed with {org.legal_name}

Staff Induction Checklist

Included as a separate attachment

Worker Declarations

Included as a separate attachment